

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 05/06/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Padilla – Trust 01298596	MOTION TO COMPEL INITIAL RESPONSES TO DISCOVERY AND FOR TERMINATING SANCTIONS (ROA 262) Trustee Pasqualina Wilkiewicz aka Patti Formica (“Trustee”) moves to compel John Michael Vasquez to respond to Trustee’s form interrogatories, special interrogatories, requests for admission, and requests for production of documents. Trustee further moves for terminating sanctions. The evidence before the court is that Trustee propounded first sets of Form Interrogatories, Special Interrogatories, Requests for Admission, and Requests for Production of Documents on Mr. Vasquez on 3/29/25. No responses to the discovery have been served to date. Moving party need not show anything more to obtain an order compelling initial responses to interrogatories and requests for production of documents. (Code of Civ. Proc. §§ 2030.290; 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906.) Trustee’s motion to compel initial responses to form interrogatories, special interrogatories, and requests for production of documents is GRANTED. As to requests for admission, if a party fails to serve a timely response, the remedy is to file a motion to deem the requests for admission admitted, not to compel initial responses. (Code Civ. Proc. § 2033.280(b).) Here, the notice of motion does not give notice that Trustee intends to move for an order to deem the requests for admission admitted. It only gives notice that Petitioner is seeking an order compelling initial responses. There is no statutory basis for ordering initial responses to requests for admission. Thus, Trustee’s motion to compel initial responses to requests for admission is DENIED. Trustee must file a motion to deem requests for admission admitted with proper notice. Trustee’s request for terminating sanctions is DENIED. The purpose of discovery sanctions is to protect the party seeking the discovery, not to punish the noncompliant party. (See <i>Siry Inv., L.P. v. Farkhondehpour</i> (2020) 45 Cal.App.5th 1098, 1117.) “Where a motion to compel has been granted,

and discovery has been delayed or denied, the court must make orders in regard to the refusal As are just . . . The penalty should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. Where a motion to compel has previously been granted, the sanction should not operate in such a fashion as to put the prevailing party in a better position than he would have had if he had obtained the discovery sought and it had been completely favorable to his cause." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793 [superseded by statute on other grounds].)

"A decision to order terminating sanctions should not be made lightly." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279 [overruled on other grounds by *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259, 1273.) "But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (*Id.* at pp. 279-280.) "Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders." (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

"[T]he terminating sanction is a drastic penalty and should be used sparingly. A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights." (*Lopez v. Watchtower Bible & Tract Soc'y of New York, Inc.* (2016) 246 Cal.App.4th 566, 604, citations omitted.) "The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should 'attempt [] to tailor the sanction to the harm caused by the withheld discovery.' . . . The trial court cannot impose sanctions for misuse of the discovery process as a punishment. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992, citations omitted.) The purpose of the discovery sanctions is to protect the party seeking the discovery, not to punish the noncompliant party. (See *Siry Inv., L.P. v. Farkhondehpour* (2020) 45 Cal.App.5th 1098, 1117.)

"The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination." (*Dopes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.)

Here, Mr. Vasquez has not violated any discovery orders. This is a motion to compel initial responses to discovery. The court finds no basis to impose terminating sanctions.

Counsel for Trustee is ordered to give notice of this ruling.